

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on August 21, 2015,

effective on September 1, 2015

Rule 4.220. Remote video proceedings in traffic infraction cases

(a) Authorization for ~~pilot project~~ remote video proceedings

(1) ~~With the approval of the Judicial Council, a~~ A superior court may establish by local rule ~~a pilot project through December 31, 2015, to~~ permit arraignments, trials, and related proceedings concerning the traffic infractions specified in (b) to be conducted by two-way remote video communication methods under the conditions stated below.

(2) ~~To obtain approval of the Judicial Council to conduct a pilot project for remote video proceedings under this rule, a court must submit an application to the council that includes details on what procedures and forms the court intends to institute for processing cases in the pilot project.~~

(Subd (a) amended effective September 1, 2015.)

(b) * * *

(c) Application

This rule establishes the minimum procedural requirements and options for courts that conduct ~~a pilot project for~~ remote video proceedings for cases in which a defendant is charged with an infraction as defined in (b) and the defendant's requests to proceed according to this rule ~~is for a trial or related proceeding that is set for a date after January 31, 2013.~~

(Subd (c) amended effective September 1, 2015.)

(d) * * *

(e) ~~Scope of court pilot project~~ Required procedures and forms and request by defendant

A court that conducts remote video proceedings under this rule must comply with the ~~The~~ following procedures and use the required forms in this section ~~must be included in the court's pilot project for remote video proceedings.~~ In addition to following the standard provisions for processing traffic infraction cases, the defendant may request to proceed by remote video proceeding as provided below.

(1)–(2) * * *

1
2 (3) *Trial on a date that is separate from the date of arraignment*

3
4 The following procedures apply to a remote video proceeding when the court
5 grants a defendant's request at arraignment to have a trial set for a date that is
6 separate from the date of the arraignment:

7
8 (A) * * *

9
10 (B) To proceed by remote video trial, the defendant must sign and file a
11 *Notice and Waiver of Rights and Request for Remote Video Proceeding*
12 (form TR-510) with the clerk by the appearance date indicated on the
13 *Notice to Appear* or a continuation of that date granted by the court and
14 must deposit bail with the form as required by the court under section
15 (f).

16
17 (C) * * *

18
19 (4) *Judicial Council forms for remote video proceedings*

20
21 The following forms must be made available by the court and used by the
22 defendant to implement the procedures that are required ~~by a court's pilot~~
23 ~~project~~ under this rule:

24
25 (A)–(C) * * *

26
27 *(Subd (e) amended effective September 1, 2015.)*

28
29 **(f) Deposit of bail**

30
31 ~~(1) If a defendant requests to proceed by remote video arraignment and trial as~~
32 ~~provided in section (e)(1), the defendant must deposit bail, at the same time~~
33 ~~the request is filed, in the amount established in the uniform traffic penalty~~
34 ~~schedule under Vehicle Code section 40310.~~

35
36 ~~(2) If a defendant requests to proceed by remote video proceeding for a trial as~~
37 ~~provided in section (e)(3), the judicial officer may require deposit of bail, at~~
38 ~~the same time the request for remote video proceeding is filed, in the amount~~
39 ~~established in the uniform traffic penalty schedule under Vehicle Code~~
40 ~~section 40310.~~

41
42 Procedures for deposit of bail to process requests for remote video proceedings
43 must follow rule 4.105.

1 *(Subd (f) amended effective September 1, 2015.)*

2
3 ~~(g)-(l)~~ * * *

4
5 **(m) Noncompliance**

6
7 If the defendant fails to comply with this rule (including depositing the bail amount
8 when required, signing and filing all required forms, and complying with all time
9 limits and due dates), the court may deny a request for a remote video proceeding
10 and may proceed as otherwise provided by statute.

11
12 *(Subd (m) amended effective September 1, 2015.)*

13
14 **(n)** * * *

15
16 **(o) Local rules and forms**

17
18 A court establishing a remote video ~~trial project~~ proceedings under this rule may
19 adopt such local rules and additional forms as may be necessary or appropriate to
20 implement the rule and the court's local procedures not inconsistent with this rule.

21
22 *(Subd (o) amended effective September 1, 2015.)*

23
24 **(p) Notice and collection of information and reports on remote video proceedings**
25 ~~**pilot project**~~

26
27 Each court that establishes a ~~pilot project~~ local rule authorizing remote video
28 proceedings under this rule must notify the Judicial Council, institute procedures as
29 required by the ~~Judicial~~ council for collecting and evaluating information about that
30 court's ~~pilot project program~~, and ~~must~~ prepare semiannual reports to the ~~Judicial~~
31 council that include an assessment of the costs and benefits of ~~the project~~ remote
32 video proceedings at that court.

33
34 *(Subd (p) amended effective September 1, 2015.)*

35
36 ~~**(q) Effective dates**~~

37
38 ~~This rule is adopted effective February 1, 2013, and remains in effect only until~~
39 ~~January 1, 2016, and as of that date is repealed, unless a rule adopted before~~
40 ~~January 1, 2016, repeals or extends that date.~~

41
42 *Rule 4.220 amended effective September 1, 2015; adopted effective February 1, 2013.*

43

1 **Rule 10.16. Technology Committee**

2
3 **(a) Technology policies**

4
5 The Technology Committee oversees the council's policies concerning information
6 technology. The committee assists the council by providing technology
7 recommendations focusing on the establishment of policies that emphasize long-
8 term strategic leadership and that align with judicial branch goals. The committee is
9 responsible for determining that council policies are complied with on specific
10 projects approved and funded by the council and that those projects proceed on
11 schedule and within scope and budget.

12
13 *(Subd (a) amended effective September 1, 2015.)*

14
15 **(b) Coordination**

16
17 The committee coordinates the activities of the Administrative Director ~~of the~~
18 ~~Courts~~, council internal committees and advisory committees, the courts, justice
19 partners, and stakeholders on matters relating to court information technology. The
20 committee also, in collaboration or consultation with the Policy Coordination and
21 Liaison Committee, coordinates with other branches of government on information
22 technology issues.

23
24 *(Subd (b) amended effective September 1, 2015.)*

25
26 **(c) * * ***

27
28 **(d) Strategic and tactical technology plans**

29
30 **(1) Strategic technology plan**

31
32 The strategic technology plan describes the technology goals for the branch.
33 With input from advisory committees and individual courts, the committee is
34 responsible for developing and recommending a strategic technology plan for
35 the branch and the courts.

36
37 **(2) Tactical technology plan**

38
39 The tactical technology plan outlines the technology initiatives and projects
40 that provide a road map for achieving the goals in the strategic technology
41 plan. The committee provides oversight approval and prioritization of the
42 tactical technology plan, which is developed and recommended by advisory
43 committees with input from the courts.

(Subd (d) adopted effective September 1, 2015.)

(d)(e) Technology needs, standards, and systems

The committee will, in partnership with the courts, develop timelines and recommendations to the council for:

(1)–(2) * * *

~~(3) Establishing a strategic information technology plan for the judicial branch and the courts;~~

~~(4)(3) Developing~~ Reviewing and recommending information technology standards; and

~~(5)(4) Developing standardized requests for proposals, identifying appropriate vendors, and~~ Encouraging the courts to leverage their collective economic purchasing power in acquiring technological systems.

(Subd (e) amended and relettered effective September 1, 2015; adopted as subd (d).)

(f) Sponsorship of branchwide technology initiatives

The committee may act as executive sponsor of branchwide technology initiatives under the workstream model in rule 10.53(c).

(Subd (f) adopted effective September 1, 2015.)

(g) Funding of branchwide technology initiatives and projects

The committee reviews, prioritizes, and recommends requests for the funding of branchwide technology initiatives and projects with input from advisory committees. Factors to be considered by the committee include overall return on investment, business risk, alignment with the technology goals approved by the council in the strategic technology plan, and the availability of sufficient funding from an identifiable funding source.

(Subd (g) adopted effective September 1, 2015.)

(h) Collaboration and consultation with the committee

1 Other committees and advisory bodies should collaborate or consult with the
2 committee (1) before making decisions or recommendations on technology
3 policies, standards, and projects, and (2) before recommending funding priorities or
4 making recommendations to approve funding requests for branchwide technology
5 initiatives and projects.

6
7 *(Subd (h) adopted effective September 1, 2015.)*
8

9 **~~(e)~~(i) Oversight of advisory committees and task forces**

10
11 For those advisory committees and task forces over which it has been assigned
12 oversight by the Chief Justice, the Technology Committee ensures that the
13 activities of each are consistent with the council's goals and policies. To achieve
14 these outcomes, the committee:

- 15
16 (1) Communicates the council's annual charge to each; ~~and~~
17
18 (2) Reviews an annual agenda for each to determine whether the annual agenda
19 is consistent with its charge and with the priorities established by the
20 council-; and
21
22 (3) Oversees the branchwide technology initiatives sponsored by each.
23

24 *(Subd (i) amended and relettered effective September 1, 2015; adopted as subd (e).)*
25

26 *Rule 10.16 amended effective September 1, 2015; adopted effective February 20, 2014.*
27

28 **Rule 10.53. ~~Court~~ Information Technology Advisory Committee**

29
30 **(a) Areas of focus**

31
32 The committee makes recommendations to the council for improving the
33 administration of justice through the use of technology and for fostering
34 cooperative endeavors to resolve common technological issues with other
35 stakeholders in the justice system. The committee promotes, coordinates, and acts
36 as executive sponsor for projects and initiatives that apply technology to the work
37 of the courts.
38

39 *(Subd (a) amended effective September 1, 2015; previously amended effective January 1,*
40 *2007.)*
41

42 **(b) Additional duties**
43

1 In addition to the duties described in rule 10.34, the committee must:

2
3 (1) Oversee branchwide technology initiatives funded in whole or in part by the
4 state;

5
6 ~~(1)(2)~~ Recommend rules, standards, and legislation to ensure compatibility in
7 information and communication technologies in the judicial branch;

8
9 ~~(2)(3)~~ Review and comment on requests for the funding of judicial branch
10 technology projects to ensure compatibility with goals established by the
11 council and standards promulgated by the committee; Provide input to the
12 Judicial Council Technology Committee on the technology and business
13 requirements of court technology projects and initiatives in funding requests;

14
15 ~~(3)(4)~~ Review and recommend legislation, rules, or policies to balance the interests
16 of privacy, access, and security in relation to court technology;

17
18 ~~(4)(5)~~ Make proposals for technology education and training in the judicial branch;

19
20 ~~(5)(6)~~ Assist courts in acquiring and developing useful technologies; and

21
22 (7) Establish mechanisms to collect, preserve, and share best practices across the
23 state;

24
25 ~~(6)(8)~~ ~~Maintain a long-range plan.~~ Develop and recommend a tactical technology
26 plan, described in rule 10.16, with input from the individual appellate and
27 trial courts; and

28
29 (9) Develop and recommend the committee's annual agenda, identifying
30 individual technology initiatives scheduled for the next year.

31
32 *(Subd (b) amended effective September 1, 2015; previously amended effective January 1,*
33 *2007.)*

34
35 **(c) Sponsorship of branchwide technology initiatives**

36
37 (1) Oversight of branchwide technology initiatives

38
39 The committee is responsible for overseeing branchwide technology
40 initiatives that are approved as part of the committee's annual agenda. The
41 committee may oversee these initiatives through a workstream model, a
42 subcommittee model, or a hybrid of the two. Under the workstream model,
43 committee members sponsor discrete technology initiatives executed by ad

1 hoc teams of technology experts and experienced project and program
2 managers from throughout the branch. Under the subcommittee model,
3 committee members serve on subcommittees that carry out technology
4 projects and develop and recommend policies and rules.

5
6 (2) Technology workstreams

7
8 Each technology workstream has a specific charge and duration that align
9 with the objective and scope of the technology initiative assigned to the
10 workstream. The individual tasks necessary to complete the initiative may be
11 carried out by dividing the workstream into separate tracks. Technology
12 workstreams are not advisory bodies for purposes of rule 10.75.

13
14 (3) Executive sponsorship of technology workstreams

15
16 The committee chair designates a member or two members of the committee
17 to act as executive sponsors of each technology initiative monitored through
18 the workstream model. The executive sponsor assumes overall executive
19 responsibility for project deliverables and periodically provides high-level
20 project status updates to the advisory committee and council. The executive
21 sponsor is responsible for facilitating work plans for the initiative.

22
23 (4) Responsibilities and composition of technology workstream teams

24
25 A workstream team serves as staff on the initiative and is responsible for
26 structuring, tracking, and managing the progress of individual tasks and
27 milestones necessary to complete the initiative. The executive sponsor
28 recommends, and the chair appoints, a workstream team of technology
29 experts and experienced project and program managers from throughout the
30 branch.

31
32 *(Subd (c) adopted effective September 1, 2015.)*

33
34 **(e)(d) Membership**

35
36 The committee must include at least one member from each of the following
37 categories:

38
39 (1)–(5) * * *

40
41 (5) Trial court information technology officer;

42
43 (5)(6) Member of the Senate;

1
2 ~~(6)~~(7) Member of the Assembly;

3
4 ~~(7)~~(8) Representative of the executive branch; and

5
6 ~~(8)~~(9) Lawyer.

7
8 *(Subd (d) amended and relettered effective September 1, 2015; adopted as subd (c);*
9 *previously amended effective January 1, 2007.)*

10
11 **~~(d)~~(e) Member selection**

12
13 The two legislative members are appointed by the respective houses. The executive
14 member is appointed by the Governor. The lawyer member is appointed by the
15 State Bar. In making all other appointments to the committee, factors to be
16 considered include a candidate's technology expertise and experience, as well as an
17 ability to act as lead executive sponsor for technology initiatives.

18
19 *(Subd (e) amended and relettered effective September 1, 2015; adopted as subd (d).)*

20
21 **~~(e)~~(f) Chair**

22
23 The Chief Justice appoints a judicial officer ~~or justice member~~ to serve as chair.

24
25 *(Subd (f) amended and relettered effective September 1, 2015; adopted as subd (e).)*

26
27 *Rule 10.53 amended effective September 1, 2015; adopted as rule 6.53 effective January 1, 1999;*
28 *previously amended and renumbered effective January 1, 2007.*